

Tamil Nadu Electricity Regulatory Commission - Tamil Nadu Electricity Distribution Standards of Performance Regulations, 2004

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State of Tamilnadu- Act

Tamil Nadu Electricity Regulatory Commission - Tamil Nadu Electricity Distribution Standards of Performance Regulations, 2004

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Tamil Nadu Electricity Regulatory Commission - Tamil Nadu Electricity Distribution Standards of Performance Regulations, 2004

Rule

TAMIL-NADU-ELECTRICITY-REGULATORY-COMMISSION-TAMIL-NADU-ELECTRICITY-DISTRIBUTION-STANDARDS-OF-PERFORMANCE-REGULATIONS-2004 of 2004

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Tamil Nadu Electricity Regulatory Commission - Tamil Nadu Electricity Distribution Standards of Performance Regulations, 2004

Published vide Notification No. TNERC/SPR/9/1, dated 21st July 2004 - No. 6 (2)72486/2004

Whereas under section 86 of the Electricity Act, 2003 (Central Act 36 of 2003), the State Electricity Regulatory Commission shall, among others, specify or enforce standards with respect to quality, continuity and reliability of service

by licensees;

And Whereas, under sections 57 and 58 of the said Act, the State Electricity Regulatory Commission may, after consultation with the licensees and persons likely to be affected, specify different standards of performance for a class or classes of licensees subject to previous publication;

Now, Therefore, under section 57 read with section 181 of the said Act, and all other provisions enabling in that behalf and after previous publication, the Tamil Nadu Electricity Regulatory Commission hereby makes the following Regulations:-

Chapter 1

Preliminary

1.

Short title and Commencement.

- (i) These regulations may be called the Tamil Nadu Electricity Regulatory Commission-Tamil Nadu Electricity Distribution Standards of Performance Regulations, 2004.

(ii)

All these Regulations except provisions under regulations 21 and 22 shall come into force from the date. All Regulations except regulations 21 and 22 of the Tamil Nadu Electricity Distribution Standards of Performance Regulations, 2004 came into force on the 1st September 2004 and Regulations 21 and 22 came into force on the 1st September 2005). of their publication in the Tamil Nadu Government gazette.

(iii)

The provision? under regulations 21 and 22 shall come into force after one year from the date of their publication in the Tamil Nadu Government gazette.

2.

Definitions.

- In these regulations unless the context otherwise requires, -

(i)

"Act" means the Electricity Act, 2003 (Act 36 of 2003);

(ii)

"Commission" means the Tamil Nadu Electricity Regulatory Commission;

(iii)

Words and expressions used in these regulations but not defined either in these regulations or in the Act shall have the same meanings as understood in the engineering and commercial circles.

Chapter 2

Distribution Standards of Performance

3.

Quality of service.

- Quality of service means providing uninterrupted, reliable electric supply at stipulated voltage and frequency, which will be the end result of its planning, designing of network, operation and service management to ensure stability in supply and prompt compliance of consumers' complaints on metering and billing. The supply with frequent power failure, fuse of calls, voltage fluctuations will not ensure continuity in supply. These factors determine the degree of satisfaction of the consumers.

4.

Duties of the licensees to supply on request.

- Section 43 of the Act deals with duty to supply and read as below:

"43.(1) Every distribution licensee, shall, on an application by the owner or occupier of any premises, give supply of electricity to such premises, within one month after receipt of the application requiring such supply:

Provided that where such supply requires extension of distribution mains, or commissioning of new sub-stations, the distribution licensee shall supply the electricity to such premises immediately after such extension or commissioning or within such period as may be specified by the Appropriate Commission:

Provided further that in case of a village or hamlet or area wherein no provision for supply of electricity exists, the Appropriate Commission may extend the said period as it may consider necessary for electrification of such village or hamlet or area.

(2)

It shall be the duty of every distribution licensee to provide, if required, electric plant or electric line for giving electric supply to the premises specified in sub-section (1):

Provided that no person shall be entitled to demand, or to continue to receive, from a licensee a supply of electricity for any premises having a separate supply unless he has agreed with the licensee to pay to him such price as determined by the Appropriate Commission.

(3)

If a distribution licensee fails to supply the electricity within the period specified in sub-section (1), he shall be liable to a penalty which may extend to one thousand rupees for each day of default.

The licensees shall endeavour to give supply within a week but not exceeding 30 days wherever no extension or improvement works are involved in giving supply.

The licensees shall observe the following time Schedule for supply of electricity involving extension of distribution lines, etc.

[Table-I [[Substituted by Commission's Notification No.TNERC/SPR/9/1 -4, dated 25th July 2006 (w.e.f. 16.8.2006) before substitution it was as under:

'(a) Extension and improvement without transformers. 60 days (b) Extension and improvement with transformers. 90 days Note: This time Schedule is also applicable for additional loads.']]

Category

Time Schedule

(a) Involving no Extension or Improvement work

Preferably within a week but not exceeding 30 days

(b) Involving Extension and improvement without

Distribution Transformers

60 days

(c) Involving Extension and Improvement with

Distribution Transformers

90 days

Table-II

Category Time

Schedule for HT/EHT-

HT

EHT

(a) Involving Extension & Improvement

60 days

150 days

(b) Involving the enhancement of Power

Transformer/Addition of Power Transformer

120 days

180 days

(c) Involving the Commissioning of new

substation

180 days

270 days

(i)

The Licensee shall issue advice slip/notice/letter indicating the prescribed charges payable with proper acknowledgement.

(ii)

The Consumer shall remit the above charges within the stipulated period but not exceeding fifteen Days from the date of receipt of advice slip/ notice/letter.

(iii)

In exceptional / deserving cases, permission may be granted by the respective Chief Engineer and Superintending

Engineer or the person designated for this purpose by the Licensee for remittance of charges by the Consumer beyond the prescribed fifteen Days for HT/EHT and LT services respectively.

(iv)

The time taken by the Consumer to remit the prescribed charges from the date of receipt of demand notice will not be covered in the above time schedule.

(v)

The time schedule is also applicable for additional loads.]

5.

Exceptions on duty to supply for agricultural and hut services.

- The provision under section 43 of the Act is, however, not applicable in the case of agricultural and hut services, which shall be governed by the directives issued by the Commission, from time to time, on the basis of the guidance on this matter by the National Electricity Policy [as stipulated in section 86 (4) of the Act]

[Substituted by TNERC/SPR/9/1-6 dated 8.5.2007 (W.E.F.23.5.2007).]

and the policy directions on public interest by the State government (as stipulated in section 108 of the Act).

6.

Temporary supply.

- The intending consumers may require temporary services for construction of residential houses, complexes, commercial complexes, industrial premises and also for illumination during festivals, etc.

Such temporary services shall be effected as per the time schedule I specified for the new and additional loads.

The licensee shall refund the balance deposit, if any, within three months from the date of disconnection of service after temporary supply period is over,

7.

Shifting of service connection/deviation of lines and shifting of equipments.

- Wherever the consumers request for shifting the service connection as specified in the Supply Code, or for deviation of the existing lines at their cost, the following time schedule shall be observed for completing these works after getting the expenses as specified in the Distribution Code / Supply Code.

1. Shifting of meter / service

[25 days]

[Substituted by TNERC/S PR/9/1-6 dated 8.5.2007 (W.E.F. 23.5.2007).]

2. Shifting of LT / HT lines

60 days

3. Shifting of transformer structures

90 days

The time schedule given above includes the time required for preparation of estimates, collection of deposits, etc.

The accounts should be settled within three months from the date of completion of shifting work by recovery of excess expenditure or refunding the balance deposit.

[Note: The time taken by the Consumer to remit the prescribed charges from the date of receipt of demand notice will not be covered in the above time schedule.

[Inserted by Commission's Notification No.TNERC/SPR/9/1-4, dated 25th July 2006 (w.e.f 16.8.2006).]

In exceptional / deserving cases, permission may be granted by the respective Chief Engineer and Superintending Engineer (or the person designated for this purpose by the Licensee) for remittance of charges by the Consumer beyond the prescribed fifteen Days for HT/EHT and LT services respectively.]

8.

Transfer of service connection.

- The transfer of service connection shall be effected within seven days from the date of receipt of complete application.

9.

Change of tariff.

- A consumer can utilise a service connection given to him for a purpose different from the purpose for which he originally obtained the service connection, only if the same tariff is applicable to the new purpose also. If a different tariff is applicable to the new purpose, the consumer shall apply to the licensee before changing the purpose and a revised test report will be taken indicating the change in the tariff.

The licensee shall effect change of tariff within seven days from the date of receipt of application from the consumer. However, no consumer shall be permitted to change the tariff of the service connection from any low tension tariff (other than agriculture) to low tension tariff for agriculture.

10.

[Complaints in Billing, etc.

[Substituted by Commission's Notification No.TNERC/SPR/9-1, dated 25.7.2006 (w.e.f. 16.8.2006).]

- (i) Any complaints in billing received prior to the due date for payment shall be resolved before the next billing along with refund/adjustments, if any. However, the complaints in respect of arithmetic error if any received three days prior to the due date for payment shall be set right within the due date for payment.

(ii)

The consumer shall not, on the plea of incorrectness, withhold any portion of the amount billed.]

11.

Replacement of meter.

- Wherever the licensee receive complaints or the licensee found during inspection / meter reading, that the meter in a service connection is not correct or defective or burnt, the licensee shall replace the meter after collecting the charges as applicable and within 30 days.

12.

Interruptions and restoration of supply.

(1)

The licensee may, for reasons of testing or forced outage or maintenance, temporarily discontinue the supply for such period as may be necessary, provided that in case of planned shut down for improvement / periodical maintenance of distribution network, the licensee will, wherever possible, give advance notice in this behalf and notify through local newspapers in advance.

(II)

In case of interruptions to individual or a group of consumers due to breakdown, the licensee shall restore supply as per the time schedule furnished below:

Failure / Interruption in Corporation limits and certain special areas declared by the Commission, from time to time, shall be attended to round the clock within the time limit specified for urban areas. Complaints of failure / interruption at consumer premises in rural areas and urban areas other than Corporation limits shall be attended to between 8.00 AM and 6.00 PM. Individual complaints of consumers received during night hours ie., from 6.00 PM to 8.00 AM shall be considered to have been received at the start of working hours on the next day and attended to within the time limit as specified above. The restoration time specified in respect of individual service connection faults in rural areas shall exclude the time period of 6.00 PM to 8.00 AM. However, the complaints from essential services like water supply, hospitals, and other important Government services shall be attended to immediately, round the clock.

[Table]

[Substituted by Commission's Notification No. TNERC/SPR/9/1-4, dated 26th July 2006, (w.e.f 16.8.2006).]

Interruption Due to

Power Restoration Time

Corporation

Urban Municipalities

Rural

Hill Area

HT Supply failure

1 hour

3 hours

6 hours

12 hours

Fault in Transformer

2 hours

4 hours

6 hours

12 hours

Structure or LT Line or Pillar Box

Fault of Distribution Transformer

24 hours

48 hours

48 hours

48 hours

Individual Service Connection fault

3 hours

9 hours

12 hours

24 hours

(III)

In case of interruptions, it is the responsibility of the affected consumer to inform the same to the licensee's local office or nearest fuse off call center by telephone / written communication in person, etc.:

Provided that in case of failure / break down due to natural calamities like cyclone, [land slides in hill areas]

[Inserted by Commission's Notification No. TNERC/SPR/9/1-4, dated 25th July 2006, (w.e.f. 16.8.2006).]

etc., the licensee shall take every action to restore supply within the least possible time.

Note: The licensee shall arrange to keep the consumers informed of the progress of rectification of faults.

(IV)

The licensee shall maintain uninterrupted supply of power to railways and in case of any interruption restore the supply on top priority.

(V)

In case of interruption due to line fault / failure of transformer / equipment, the licensee shall inform the complainant (subject to availability of communication at both ends) within one hour from receipt of complaint the reasons for interruption and the likely time by which the power supply will be restored.

13.

Quality of supply.

- Quality of supply means providing [uninterrupted and reliable]

[Substituted by Commission's Notification No. TNERC/SPR/9/1-4, dated 25th July 2006, (w.e.f 16.8.2006).]

electric supply at stipulated voltage and frequency (within the permissible limits) without sags or spikes to the consumer.

When a consumer makes a complaint regarding quality of power supply, an authorised representative of the licensee shall visit the consumer's premises [***]

[Omitted by TNERC/SPR/9/1-6 dated 8.5.2007 (W.E.F.23.5.2007).]

and convey in writing within 10 days, the action proposed to be taken for attending to the complaint and the time by which it would be attended.

14.

Permissible limits for voltage and frequency variations.

- The limits of permissible variations in voltages at various levels have to be fixed on the basis of existing network, spare capacity, etc., and always be improved with system improvements, capacity generation and various other related factors. Hence, even though the ideal situations would be different, the bandwidth of variations has to reflect the actual condition and has to be specified after periodical reviews. Accordingly, the Commission, from time to time, will order the permissible limits for voltage variations.

The frequency variations shall be governed by the National / State Grid Code and hence not specified under this regulation

15.

Voltage complaints.

- The voltage complaints shall be attended to within 48 hours if no system upgradation is required. Wherever system upgradation is required to improve the status, it shall be attended to within 180 days.

16.

Failure of equipments.

- The incidents, such as failure of equipments, viz. failure of power transformer, breakers, measuring transformers, lightning arresters and capacitor banks would affect the distribution system causing aberrations, deviations in system voltage and frequency levels. The licensee shall maintain the equipments as per the schedule of maintenance so as to minimise the failure rate and thereby increase the level of performance.

17.

[Responding to Consumer's Complaint. [[Substituted by Commission's Notification No. TNERC/SPR/9/I-4,dated 25th July 2006, (w.e.f 16.8.2006) before substitution it reads as under:

'17. Responding to consumer's complaint:- If any consumer makes a complaint in writing, the licensee shall reply to the consumer within 10 days after receipt of the letter. In case, the licensee requires to visit the site or consult any other officer to give a comprehensive reply, the licensee shall explain to the consumer as to why a substantive response cannot be sent immediately and intimate the name, address and telephone number of the licensee's employee dealing with the complaint.

The licensee shall also ensure that a substantive response is sent to the consumer within 20 days of receiving the complaint letter.']]

- If any consumer makes a complaint in writing to the Territorial Engineer of the concerned licensee then, the Territorial Engineer concerned shall reply to the consumer within ten days after receipt of the letter. In case ,the Territorial Engineer requires to visit the site or consult any other officer to give a comprehensive reply, the Territorial Engineer shall explain to the consumer as to why a substantive response cannot be sent immediately and intimate the name address and telephone number of the Officer dealing with the complaint. The Territorial Engineer shall also ensure that a substantive response is sent to the consumer within twenty days of receiving the complaint letter.]

18.

Making and keeping appointments.

- Wherever the licensee make an appointment in writing to visit a consumer on a particular day, the licensee shall keep such appointment. When the appointment has to be cancelled, the licensee shall give a 24 hours notice of its cancellation to the consumer.

19.

Grievance handling.

- The licensee shall make arrangement to receive complaints from consumers at appointed date and time at appropriate offices. This information shall be suitably made known to the consumers. The licensee's representative shall receive the complaints on the appointed date and time.

Wherever the licensee is unable to comply with the above requirement, the licensee shall inform the consumers, to the extent feasible, in advance giving reasons for the inability and the time when it will be complied with. [Due to failure to inform the cancellation, if a consumer turns up with a complaint on the appointed day and registers his presence, he is eligible for compensation at the specified rate.]

[Substituted by TNERC/SPR/9/1-6 dated 8.5.2007, w.e.f .23.5.2007.]

20.

Handling of complaints on non-compliance.

- The licensee is required to maintain standards of performance for supply of electricity to all consumers in a manner prescribed. The time limit prescribed in these standards refer to the maximum time required to be taken to perform different activities of consumer service. It shall be the endeavour of the licensee to provide best possible service well within time limits specified in these regulations.

(i)

The licensee shall register every complaint made by a consumer whether orally or in writing regarding failure / meter board / service lines, payment of bills and other services relating to supply of power, in the registers exclusively maintained under the following categories:-

* Supply related complaints register.

* Meter related complaints register.

* Billing and payment related complaints register.

(ii)

A unique number shall be allotted to each complaint and conveyed to the consumer. In case of complaints which are supply related and restoration of supply, authorised persons of licensee shall prepare an acknowledgement slip in

duplicate after attending to the complaint and get the consumer signature. Where the consumer refuses to sign the acknowledgement slip, the fact shall be recorded and a copy handed over to the consumer. As a measure of precaution and proof of having visited the consumer's service location, the licensee's employee shall also record the meter reading of the respective service and any one of the adjoining service connection in the acknowledgment slip. The designated officer shall entertain any complaints from the consumer for non-compliance, only if the complaint is accompanied with a copy of acknowledgement slip. The licensee shall ensure redressal of all complaints promptly.

(iii)

Complaints in respect of supply of electricity, its metering, billing and payment thereof, shall be made at the offices specified by the licensee. The licensee shall publish through public notices, local news paper, TV, Radio, printing in the bills and receipts; etc., the name of the office(s), its address(s), telephone number where the consumer can lodge complaints. The phone services for recording complaints when outsourced by the licensee, the phone numbers of such call centers shall be incorporated in electricity bills and also displayed at the concerned offices of the licensee.

(iv)

The office where a complaint is registered shall dispose it and if any instruction / sanction is to be obtained from higher authority, it shall be obtained by the complaint registering office. The higher authority may also directly communicate the decision. The complainant should not be required to approach such higher authority. Similarly, in case an outsourced phone service is opted for, the complaint shall be forwarded to the concerned officer by such center itself and the licensee shall ensure proper compliance by the outsourced service, including posting of its officers at such centers to streamline responses.

(v)

Complaints against non-registration of complaints and failure to perform within the time limits and / or to meet the performance targets, as specified in this regulation, shall be made to the concerned officers of the licensee. The licensee shall nominate the officers to whom the consumers can lodge their complaints initially and also the next level higher officer.

(vi)

In case a consumer is not satisfied with the disposal of the complaint even after taking the issue at the higher level, the consumer can approach the Consumer Grievance Redressal Forum.

21.

Compensation.

- The licensee is expected to achieve the performance prescribed. If a licensee fails to meet the standards specified for various service areas, the affected consumer is entitled for compensation by the licensees as stipulated in the Act. [The compensation payables is set out in the Table below, namely:]

[Substituted by TNERC/SPR/9/1-8, dated 3.12.2007 (w.e.f. 19.12.2007).]

S.No.

Events

Compensation Payable

1.

Duty to give supply on request

(a) New service connection.

Rs.100/- per day of delay subject to a maximum of Rs.1,000/-

(b) Additional load.

(c) Temporary supply.

(d) Shifting of service connection.

(e) Transfer of service connection

(f) Change of tariff.

2.

Complaints in billing.

Rs.150/- for non-reply within the period.

3.

Replacement of meters

Rs.100/- for each day of delay subject to a maximum of Rs.1,000/-

4.

Interruption of supply

Rs.50/- for each six hours (or part thereof) of delay in restoration of supply subject to a maximum of Rs.2,000/-

5.

Voltage fluctuations and complaints

Rs.250/- for failure to visit or convey findings within the stipulated period.

6.

Responding to consumer's complaints.

Rs.25/- for each day of delay subject to a maximum of Rs.250/-

7.

Making and keeping appointments

Rs.50/- for failure of keeping appointment.

8.

Grievance handling.

Rs. 50/- for failure of grievance handling

9.

Refund of deposit in respect of temporary supply after the expiry of the temporary supply period and refund of balance deposit within the Performance Regulations or in the Regulation 17(6) of the Tamil Nadu Electricity Supply Code or in Regulation 33(5) of the Tamil Nadu Electricity Distribution Code.
Rs. 100/- per week or part thereof of delay in addition to the interest at the rate specified by the Commission till the date of refund.

22.

Procedure for payment of compensation.

- The claim for compensation shall be dealt with in the following manner:

I. Automatic. - This mode of payment requires the licensee to pay the compensation amount to the affected consumer automatically, following the non-compliance to a particular standard in the next billing cycle through credit entry in the consumption bill.

II. Upon claim. - An aggrieved consumer has the right to claim the compensation for non-compliance of the standards, if the licensee fails to pay the compensation in the next billing period by representing to the designated employee of the licensee.

23.

Level of performance.

- The standards specified in previous clauses set the levels of performances, which the licensees are required to achieve in specific service areas. In order to assess the overall performance level of the licensee, the following targeted performances in individual areas are specified:

Sl. No.

Service area covered under this standard

Targeted performance within the stipulated period

1

Restoration of supply during interruption due to HT break down, fault in pillar box or transformer structure and fault in individual service connections.

Licensee shall achieve 75% of the standards specified. Out of the balance, 20% shall be achieved within 24 hours from the time of complaint.

2

Replacement of failed distribution transformers.

95%

3

Giving new supply / additional load.

95%

4

Refund of balance deposit in temporary supply.

90%

5

Shifting of service.

95%

6

Change of tariff.

95%

7

Transfer of service connection.

95%

8

Complaints in billing.

95%

9

Replacement of meters.

95%

10

Voltage fluctuation and voltage complaints.

90%

11

Responding to consumer complaints.

90%

12

Making and keeping appointments.

95%

13

Grievances handling.

100%

24.

Information on standard of performance.

- The licensee shall furnish the information on the level of performances achieved, number of cases in which compensations were paid and the aggregate amount of compensation paid, once in six months in the format prescribed as per sub-section (1) of section 59 of the Act, so as to facilitate the Commission to approve the same for publication by the licensee as per sub-section (2) of section 59 of the Act.

25.

[Service Reliability. [[Substituted by Commission's Notification No. TNERC/SPR/9/1-4, dated 25th July 2006, (w.e.f. 16.8.2006) before substitution it reads as under:

'25. Service reliability:- Reliability of the distribution system operated by the distribution licensee shall be computed on the basis of number and duration of interruptions in a year. Reliability standards shall be judged by two indices, namely, consumer's average interruption frequency index (CAIFI), consumer's average interruption duration index (CAIDI).

Each distribution licensee shall formulate a suitable model on the basis of his geographical spread of the network to reveal the real ity of the situation on the above two indices and set standards of performance. The model shall begot approved by the Commission and can be distinct for each licensee.]]

- The following reliability /outage indices are prescribed by the Institute of Electrical and Electronics Engineers (IEEE) Standard 1366 of 1998. The Licensee shall compute and report the value of these indices as per the formula and methodology specified below:

(a)

System Average Interruption Frequency Index (SAJFI)

(b)

System Average Interruption Duration Index (SAIDI)

Method to compute Distribution System Reliability Indices:

The Indices shall be computed for the Distribution Licensee as a whole by stacking, for each month, all the 11KV/22KV feeders in the supply area, excluding those serving predominantly agricultural loads, and then aggregating the number and duration of all interruptions in that month for each feeder. The Indices would then be computed using the following formulae:

n

? (A1*n1)

| 1. Saifi =| i-1N1

Where,

Ai = Total number of sustained interruptions (each longer than 5 minutes) on with feeder for the month

Ni = Connected load of with feeder affected due to each interruption

Nt = Total connected load at 11/22 KV in the Distribution licensee's supply area

n = number of 11/22 KV feeders in the licensed area of supply (excluding those serving predominantly agricultural loads)

n

? (B1*n1)

| 2. Saidi =| i-1N1

Where,

Bi = Total duration of all sustained interruptions on this feeder for the month.

Note: The feeders must be segregated into rural and urban and the value of the indices must be reported separately for each month.

(i)

The Licensee shall compute the value of these indices separately for feeders serving predominantly agricultural loads. The methodology for computation of indices shall remain the same as in the case of other feeders.

(ii)

Based on the information provided by the Licensees, the Commission would notify the target levels for these indices annually.]

26.

Regulation to be read with Supply Code, Distribution Code, etc.

(1)

As these regulations are intended to enforce quality, continuity and reliability of service, these regulations shall be read along with Supply Code, Distribution Code, Grid Code and other relevant provisions of the Act, rules and regulations made thereunder pertaining to supply and consumption of electricity.

(2)

Where any of the provisions in these regulations is found to be inconsistent with those of the Act, rules or regulations made thereunder, notwithstanding such inconsistency, the remaining provisions in these regulations shall remain operative.

(3)

Where any dispute arises as to the applications or interpretations of any provisions of these regulations, it shall be referred to the Commission whose decision shall be final and binding on the parties concerned.

27.

Exemption.

- [(1) The standards of performance specified in this regulation shall remain suspended during Force-majeure conditions or cause beyond the control of the Licensee.] [[Substituted by Commission's Notification No. TNERC/SPR/9/1-4, dated 25th July 2006, (w.e.f. 1 6.8.2006) before substitution it reads as under:

'I. The Commission may relax adherence by the licensee to any specific standard of performance during force majeure condition such as war, mutiny, civil commotion, riot, flood, cyclone, storm, lightning, earth quake, grid failure and strike / curfew, lock out, fire affecting the licensee's installations and activities and also underwind or rainy conditions where safety of electrical,equipment and personnel is not possible.]]

(II)

["Non-compliance of the Standards contained in this regulation by the licensee shall not be treated as violation and the Distribution Licensee shall not be required to pay any compensation to affected consumers if such violation is caused due to grid failure, or a fault on the Transmission Licensee's network, or on account of the instructions given by the SLDC/SSLDC, over which the Distribution Licensee has no reasonable control.]

[Inserted by Commission's Notification No. TN ERC/SPR/9/1-4, dated 25th July 2006, (w.e.f 16.8.2006).]

[III]

[Re-numbered by Commission's Notification No. TNERC/SPR/9/1-4, dated 25th July 2006, (w.e.f. 16.8.2006).]

Commission under specific circumstances may relax provisions of regulations in general or in specific cases for the period specified in these regulations.

28.

Power to remove difficulties.

- I. If any difficulty arises in giving effect to any of the provisions of the regulations, the Commission may, by general or special order, direct the licensee to do anything not being inconsistent with the provisions of the Act, which appears to it to be necessary or expedient for the purpose of removing the difficulties.

II. The licensee may make an application to the Commission and seek suitable orders to remove any difficulty that may arise in implementation of these regulations.

29.

Savings.

- Nothing contained in these regulations shall affect the rights and privileges of the consumers under any other law including the Consumer Protection Act, 1986 (Act 68 of 1986).

Annexure

Format for Furnishing Information on Achieving Level of Performance and Compensation Paid

Sl.No.

Service area covered under this standard.

Targeted performance.

Performance achieved.

Aggregate Compensation paid & No. of consumers.

1

Restoration of supply during interruption due to HT break down, fault in pillar box or transformer structure and fault in individual service connections.

Licensee shall achieve 75% of the standards specified. Out of the balance, 20% shall be achieved within 24 hours from the time of complaint.

2

Replacement of failed distribution transformer.

95%

3

Giving supply/additional load.

95%

4

Refund of balance deposit in temporary supply.

90%
5
Shifting of service.
90%
6
Change of tariff.
95%
7
Transfer of service connection.
95%
8
Complaints in billing.
95%
9
Replacement of meters
95%
10
Voltage fluctuation and voltage complaints
90%
11
Responding to consumer complaints.
90%
12
Making and keeping appointments.
5%
13
Grievances handling.
100%
Related AI tags, queries and research notes
Translation